

CONSENT AND RELEASE AGREEMENT

Project Title: Kia Ora Café

Course: Front End Web Development

Institute: Manukau Institute of Technology

Lecturer / Supervisor: Dr. Ahmad F. Wedyan

Project Creator: Dustin Dwayne N. Diaz

Person Providing Materials / Inspiration: Jasmine Sison Taboy

1. BACKGROUND AND PURPOSE

This Consent and Release Agreement (“Agreement”) documents the terms under which Jasmine S. Taboy (“Provider”) grants permission to Dustin Dwayne N. Diaz (“Creator”) to use Provider’s name, photographic image(s), and submitted business concept (the “Materials”) in connection with the Creator’s academic project titled *Kia Ora Café* (the “Project”), which constitutes partial fulfillment of course requirements for the Front End Web Development course at Manukau Institute of Technology.

2. GRANT OF RIGHTS

Provider hereby grants Creator the non-exclusive, worldwide right, and without monetary consideration, grants Creator the non-exclusive, worldwide right to copy, reproduce, publish, display, distribute, adapt, create derivative works from, and otherwise use the Materials in any media, format, or medium now known or hereafter devised, solely for the Project and related academic documentation, evaluation, presentation, and archival purposes.

3. SCOPE OF USE AND RESTRICTIONS

(a) Use of the Materials is expressly limited to educational and non-commercial purposes related to the Project, submissions to the Institute, presentations to faculty or students, and archival storage by the Institute.

(b) Creator shall not sell, license for profit, or otherwise commercially exploit the Materials without Provider’s separate, prior written consent.

4. DURATION AND EXPIRATION

This authorization and Agreement shall remain in force **indefinitely and shall have no fixed expiration date**. The Project is intended to be a permanent work, and the Project website may remain publicly accessible for as long as the Creator or any successor hosting arrangement maintains it. The Creator may continue to host, maintain, update, modify, and otherwise manage the Project website and any publicly

accessible materials that include the Provider's name, image, or other authorized Materials, subject to the terms of this Agreement.

Notwithstanding the indefinite duration of this Agreement, the Provider retains the right to withdraw consent in accordance with Section 5.

5. WITHDRAWAL OF CONSENT

The Provider may withdraw consent at any time by delivering written notice to the Creator at the contact information provided in this Agreement. Upon receipt of such notice, the Creator shall use commercially reasonable efforts to remove the Provider's Materials from future public display within a reasonable timeframe. The Provider acknowledges that removal from archival, cached, third-party, or distributed copies may not be immediate or fully practicable, and the Creator and the Institute shall not be liable for such residual copies.

6. WAIVER, RELEASE, AND LIMITATION OF LIABILITY

Provider hereby releases, waives, and forever discharges Creator, Manukau Institute of Technology, their officers, employees, agents, assigns, and licensees from any and all claims, demands, causes of action, liabilities, damages, and costs (including reasonable legal fees) arising out of or in any way connected with the use of the Materials as authorized by this Agreement, except to the extent such claims arise from Creator's material breach of the express restrictions in Section 3.

7. REPRESENTATIONS AND WARRANTIES

Provider represents and warrants that:

- (a) Provider has the legal capacity to enter into this Agreement;
- (b) Provider owns, controls, or has obtained sufficient permission to grant the rights relating to the Materials provided by the Provider; and
- (c) To the best of the Provider's knowledge, the Materials provided by the Provider and their authorized use under this Agreement do not knowingly infringe the rights of any third party.

8. RESPONSIBILITY FOR MATERIALS

The Provider acknowledges that the Creator is relying on the Provider's representations in Section 7 when using the Materials for the Project. The Provider agrees to notify the Creator if they become aware of any issue affecting the Creator's authorized use of the Materials under this Agreement.

9. CONFIDENTIALITY AND PERSONAL DATA

Creator will handle any personal data provided by the Provider in accordance with applicable privacy laws and Institute policy. Creator will not publish the Provider's personal contact details other than those expressly permitted by the Provider in connection with the Project. The Provider consents to the inclusion of their name and image as set out in this Agreement and acknowledges that the Project website may be publicly accessible on the internet and that the authorized Materials may therefore be viewed by members of the public.

10. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of New Zealand. Any dispute arising under or in connection with this Agreement shall be subject to the non-exclusive jurisdiction of the courts of New Zealand.

11. SEVERABILITY

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

12. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the parties concerning the subject matter hereof and supersedes any prior oral or written agreements, representations, or understandings.

Project Creator:

Name: Dustin Dwayne N. Diaz
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Phone: +64225400799
Signature:



15/09/2025

Provider:

Name: Jasmine Sison Taboy
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Signature:



15/09/2025